BEFORE THE OFFICE OF ADMINISTRATIVE HEARINGS

In the Matter of: Kind Meds, Appellant.	)	Case No.: 2025-ADU-0117-MDHS NOTICE OF HEARING AND APPOINTMENT OF ADMINISTRATIVE LAW JUDGE

PURSUANT TO the request of the Appellant, you are hereby notified that the Office of Administrative Hearings, on behalf of the Arizona Department of Health Services (the "Department"), will conduct a hearing at 1740 W. Adams St., Lower Level, Phoenix, AZ 85007 on December 5, 2024 at 9:00 AM to consider the Department's September 27, 2024 Notice of Assessment of Civil Monetary Penalties. .

YOU ARE ADVISED that the hearing will be conducted under the authority of and in accordance with Arizona Revised Statutes ("A.R.S.") Title 36, Chapter 28.1, and Title 41, Chapter 6, Article 10, and Arizona Administrative Code ("A.A.C.") Title 9, Chapter 17.

YOU ARE ADVISED that you have the right to be represented by counsel or to proceed without counsel. A.R.S. § 41-1092.07.

Any supporting documents to this matter submitted to the Clerk of the Department at the time of the request for an administrative hearing are not part of the administrative record with the exception of documents that set in place the request for an administrative hearing. Documents may be submitted into evidence at the scheduled administrative hearing before the assigned administrative law judge.

YOU ARE FURTHER ADVISED that failure to appear at the scheduled hearing may result in the administrative law judge dismissing the matter or otherwise deciding the case against you.

The Office of Administrative Hearings has appointed Adam Stone, Office of Administrative Hearings, as administrative law judge to conduct such hearing and issue such orders pursuant to the Office of Administrative Hearings' procedural rules and the procedural rules that the administrative law judge determines are necessary to properly adjudicate the above-captioned matter. **Information regarding procedures, practice pointers, on-line filing of motions, such as making requests to appear telephonically, is available through Office of Administrative Hearings' website at www.azoah.com.**

In accordance with A.R.S. § 41-1092.08, the administrative law judge shall submit to the Director of the Department a written recommendation including proposed findings of fact, conclusions of law, and a recommended decision regarding the disposition of this matter.

The original of all correspondence and pleadings to be filed in the matter should be directed to the Office of Administrative Hearings, 1740 W. Adams St., Lower Level, Phoenix, AZ 85007. Please provide copies to all other parties and to the agency at the address listed below.

Persons with a disability may request a reasonable accommodation, such as a sign language interpreter, **by visiting www.azoah.com, and submitting an on-line motion, by mail** to the Office of Administrative Hearings, 1740 W. Adams St., Lower Level Phoenix, AZ or **by calling (602) 542-9826**. Requests should be made as early as possible to allow time to arrange the accommodation.

Dated this 14th of October, 2024.

Kimberly Reid
Director's Designee

ORIGINAL filed on the 14th day of October, 2024 with:

Clerk of the Department
Arizona Department of Health Services
150 N. 18th Ave., Ste. 200
Phoenix, AZ 85007

COPIES of the foregoing sent by electronic mail on the 14th day of October, 2024, to:

Zuber Law LLP
Janet Jackim
Kind Meds
2415 E Camelback Road, Suite 700
Phoenix, Az 85016
jjackim@zuberlawler.com

Gregory W. Falls
Matthew A. Hesketh
Shayna Stuart
Sherman & Howard L.L.C.
2555 East Camelback Road, Suite 1050
Phoenix, Arizona 85016
gfalls@shermanhoward.com
mhesketh@shermanhoward.com
sstuart@shermanhoward.com

Thomas Salow, Assistant Director
Megan Whitby, Deputy Assistant Director
Kimberly Crawford, Section Chief
Jennifer Daniels, Compliance Officer
Jason Swank, Deputy Section Chief
ADHS/Division of Public Health Services-Licensing Services
150 N. 18th Ave.
Phoenix, AZ 85007
PHLENF@azdhs.gov

Adam Stone, Administrative Law Judge
Office of Administrative Hearings
1740 W. Adams St., Lower Level
Phoenix, AZ 85007